

IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO

STATE OF OHIO, ex rel. DAVE YOST, : Case No. 20 IN06-0149
Plaintiff : Judge Richard D. Wetzel
-vs- :
THE LANDINGS PROPERTY :
ASSOCIATION, INC., ET AL. :
Defendants. :

AMENDED TENTH INTERIM REPORT OF RECEIVER

Now comes Jack Harris of Intercept Management Corp., the court-appointed receiver for the Defendant The Landings Property Owners Association, Inc. (“Receiver”), by and through counsel, and makes this *Tenth Interim Report of Receiver* with the Court. The Receiver reports as follows:

1. Commencement on remediation and repair of the Knox Cattle Dam (“Dam”) has been briefly delayed due to wet conditions. Haines Construction now expects to start the “de-watering” process around May 4.
2. Construction is now tentatively scheduled to begin on May 11, assuming suitable weather.
3. The spill pipes and risers are available for pick-up at such time as work begins.
4. The drain pipe on the Dam is currently about 1/3 open and is draining. The City of Mt. Vernon has repaired the siphon system so it is now operational to assist with drainage.

5. The Receiver has revised the name of the entity on the Park National Bank loan documents and has also received an extension of the loan commitment until July 31, 2026.

6. As previously reported, the legal name of the homeowners' association, The Landings Property Owners Association, Inc. was misstated as The Landings Common Area Association, Inc. in the Declarations of Building and Development Restrictions ("Declarations") at the time of their filing.

7. Because the real estate where the Dam is located is recorded under The Landings Property Owners Association, Inc. (the "Association"), and that is the legal name with the Ohio Secretary of State, the Receiver has determined that the most efficient way to resolve the conflict will be to file an Amended Declaration(s) with the Knox County Recorder to correct the name on those documents. That document is in process. With the exception of the name change, the Receiver does not anticipate further revisions to the Declarations.

8. Based upon a search of the records, it appears as though the Declarations are the only formational documents existing for the Association on record with the County Recorder or otherwise (excepting Articles of Incorporation filed with the Ohio Secretary of State).

9. As such, additional documents including, but not limited to, By-Laws are being created. Once drafts are completed, the Receiver will give notice of same to the owners in the affected Phases VII and VIII, and opportunity for any comment on same.

10. Once the period for comment has passed, the Receiver will adopt the By-Laws on behalf of the Association – subject to this Court's prior approval of same.

11. While it is expected that the City of Mt. Vernon will ultimately collect assessments relative to the ongoing maintenance and repair of the remediated Dam, the Receiver expects that it will still be necessary for the reformed Association to collect additional assessments from the

Association members. These Association-driven assessments would be used to ensure adequate funds for insurance, legal expenses for the future, maintenance for any additional common areas not part of the Dam project, and other reasonably necessary expenses.

12. Once By-Laws have been adopted, the Receiver anticipates holding a meeting of all residents of Phase VII and VIII whereupon a board of directors and/or officers for the Association would be elected. At that time, the Receiver would cede control of the Association to the board.

13. In order to provide necessary support and structure for the reformed Association, the Receiver will work with the board in adopting Rules and Regulations for the Association, with final decisions as to the content of those resting with the Association board members.

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on April 22, 2026, a copy of the foregoing *Tenth Interim Report of Receiver* was submitted to the Court electronically and served upon the following:

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